

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 25, 2026
8:30 a.m./1:30 p.m.

15. KRISTY REDPATH V. THOMAS PISILLO

21FL0148

Petitioner filed a Request for Order (RFO) on January 28, 2026, requesting a modification of child custody and parenting plan orders, child support, as well as a name change for the minor. Petitioner concurrently filed an Income and Expense Declaration. Parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on February 19, 2026, and a review hearing on April 16, 2026. Respondent was personally served in accordance with Family Code section 215 on January 29, 2026. It does not appear Respondent was served with all the required documents, namely a blank FL-320 and Blank FL-150.

Only Petitioner appeared at the CCRC appointment. As such, a single parent report with no recommendations was filed with the court on February 19, 2026. Copies were mailed to the parties on February 23, 2026.

Both parties appeared at the hearing set for April 16, 2026. Petitioner requested the matter be continued and that the parties be rereferred to CCRC. The court granted the request and set a further review hearing for June 25, 2026, at 1:30 PM in Department 5. Petitioner was directed to perfect service on Respondent.

Both parties appeared at the CCRC appointment and reached full agreements. The parties submitted a stipulation which the court adopted as its order on May 11, 2026.

Petitioner filed an amended Proof of Service showing all required documents were served on Respondent on January 29, 2026.

Respondent has not filed a Responsive Declaration or Income and Expense Declaration.

As Respondent has not filed a Responsive Declaration to Request for Order, the court deems his failure to do so as an admission that Petitioner's moving papers have merit. See El Dorado County, Local Rule 7.10.02(C).

The court grants Petitioner's request to change the name of the minor, as it is in the best interest of the minor. The minor's name shall be Rio Nova McGee.

Parties are ordered to appear on the issue of child support. Respondent is ordered to bring a completed Income and Expense Declaration with him to the hearing.

All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however,

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this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #15: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING. RESPONDENT IS ORDERED TO BRING A COMPLETED INCOME AND EXPENSE DECLARATION WITH HIM TO THE HEARING.

THE COURT MAINTAINS ALL CURRENT ORDERS AS TO CUSTODY AND PARENTING TIME. THE COURT GRANTS PETITIONER'S REQUEST TO CHANGE THE NAME OF THE MINOR, AS IT IS IN THE BEST INTEREST OF THE MINOR. THE MINOR'S NAME SHALL BE RIO NOVA MCGEE.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.